

a matter of law, or that arises out of a relationship between the two.' [Citation omitted.]" (*Long v. PKS, Inc., supra*, 12 Cal.App.4th at 1297-1298 [quoting *Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc.* (1989) 48 Cal.3d at 590].) (*See also Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 984 [under California law, damages for emotional distress are recoverable only if the defendant has breached some other duty to the plaintiff].)

There appears to be no dispute that the NIED claim arises out of a breach of duty in the provision of professional medical services, and that the one-year statute of limitations of Code of Civil Procedure section 340.5 applies to this cause of action. TPMG argues there is no separate cause of action for NIED under California law but does so only in the context of its argument that this cause of action is barred by the statute of limitations. Arguably, the NIED claim then merely alleges another claim for negligence with the emotional distress injury allegedly caused by TPMG's medical negligence. This cause of action against TPMG is barred by the one-year statute of limitations of Code of Civil Procedure section 340.5 for the same reasons as Plaintiff's second and third causes of action.

The demurrer to the third cause of action based on the statute of limitations is **sustained, with leave to amend**.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

3. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: SU, ALIVIA
TENTATIVE RULING:

The **motion is granted as to Plaintiff Alivia Su**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

4. 9:00 AM CASE NUMBER: C22-02341
CASE NAME: ALMA CANLAS VS. CSAA INSURANCE EXCHANGE, AN UNINCORPORATED ASSOCIATION
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, JOHN
TENTATIVE RULING:

The **motion is granted as to Plaintiff John Robinson**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

5. 9:00 AM CASE NUMBER: C22-02772